

Bihar District Ayush Medical/State Ayush Medical Service (Appointment on Regular/Contract basis and service conditions) Rules, 2010

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Bihar District Ayush Medical/State Ayush Medical Service (Appointment on Regular/Contract basis and service conditions) Rules, 2010

Rule

BIHAR-DISTRICT-AYUSH-MEDICAL-STATE-AYUSH-MEDICAL-SERVICE-APPOINTMENT-ON-REGULAR-CONTRACT-BASIS-AND-SERVICE-CONDITIONS-RULES-2010 of 2010

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Bihar District Ayush Medical/State Ayush Medical Service (Appointment on Regular/Contract basis and service conditions) Rules, 2010

Published vide F.No.-16/M1-03/08-1026 (ns0 fp0)-Health(De-Chi), dated 21.12.2010

Last Updated 26th December, 2019

F.No.-16/M1-03/08-1026 (ns0 fp0)-Health(De-Chi). - In exercise of Powers conferred by Proviso to Article 309 of the Constitution of India, the Governor of Bihar is pleased to make the following Rules relating to the Appointment and service conditions of the District and State Ayush (Non- teaching) Doctors.. -

Chapter 1

Preliminary

1.

Short title, extent and commencement.

(1)

These Rules may be Called the Bihar District Ayush Medical/State Ayush Medical Service (Appointment on Regular/Contract basis and service conditions) Rules, 2010.

(2)

It shall extend to the whole of the state of Bihar.

(3)

It shall come into force from the date of publication in the Bihar Gazette.

2.

Definitions.

- In these Rules, unless the context otherwise requires . -

(a)

"State Health Society/District Health Society" means a Society constituted under the Societies Registration Act as per guidelines of the National Rural Health Mission.

(b)

"Government" means Government of Bihar;

(c)

"Department" means Health Department;

(d)

"Commission" means Bihar Public Service Commission ;

(e)

"Specialist Doctors" means a doctor who has obtained Post graduate Degree as M.D/ M.S or equivalent or Higher Degree from a recognized Ayush sector teaching institution and that degree must be recognized by the Central Indigenous Medical Council/Central Council of Homoeopathic;

(f)

"Ayush" means Ayurved, Yoga & Naturopathy, Unani, Siddha and Homoeopathic Systems of treatment;

(g)

"Directorate" means Ayush directorate under the Health Department;

(h)

"Cadre" means a part of services as Separate unit;

(i)

"Seniority" means the Cadre seniority in basic grade. Upper post of basic grade of the cadre of Ayush sector shall be Higher posts of the cadre;

3.

Constitution of Services.

- Bihar District Ayush Medical/State Ayush Medical Service shall be divided in the following two cadres.

(a)

District Ayush medical Cadre ;

(b)

State Ayush medical Cadre.

Chapter 2

District Ayush Medical Cadre

4.

(a)

All doctors working in Additional Primary Health Centre, Primary Health Centre and State Dispensary (Ayurved, Unani & Homoeopathic) shall be in District Ayush Medical Cadre. All Doctors working in Referral Hospital, Sub- Divisional Hospital, Sadar Hospital, Hospitals of Medical Colleges of Ayush sector. State Ayurved & Unani Pharmacy and research unit, Doctors of State Ayush Medical Service

Specialist Sub-cadre of clause (b) of Rule-5 of chapter -3, Incharge Medical Officer, Dy Superintendents and first Medical officer of PH.C and Referral Hospital shall be in State Ayush Medical Cadre.

(b)

Every year doctors shall be selected having regard to available vacancies as per the prescribed procedure and on the basis of advertisement for which guidelines shall be issued from time to time by the Department separately.

(c)

Age limit. - the maximum age limit as prescribed by the Government (General Administration Department) from time to time shall be applicable.

(d)

Reservation. - It shall be necessary to follow the reservation Rules prescribed by the State Government.

(e)

In the District Ayush Medical Cadre, doctors shall be selected on contract basis and shall work for at least two years. On their satisfactory services, extension of service may be made. All posts of this Cadre shall be filled on contract basis and no permanent/temporary appointment shall be on these posts. The services shall be extended after satisfactory performance. Doctors of this Cadre can be transferred any where in the concerned district.

Chapter 3

State Ayush Medical Cadre

5.

The following two sub-cadres shall be in State Ayush Medical Cadre.

(a)

State Ayush Medical Service General Duty sub-cadre; and

(b)

State Ayush Medical Service specialist sub-cadre. Doctors of this Cadre may be transferred any where in the State.

6.

All other posts except the posts identified for the District Ayush Cadre, shall be deemed to be post of the State Ayush Medical Cadre.

7.

Appointment in the State Health Ayush Cadre shall be made by the state Government on the posts of Ayush Medical Officer/Ayush Specialist grade 11. They shall be selected every year having regard to available vacancies through a competitive examination according to prescribed procedure. The selection shall be made through commission and it shall be necessary to follow the reservation rules prescribed by the State Government.

8.

It shall be necessary to have a working experience of at least two years in rural area Hospitals or appointment in the General Duty sub-cadre. For appointment in specialist sub- cadre, it shall be essential to have a post graduate degree.

9.

(a)

Pay scales for different posts shall be as per schedule 1 of these Rules

(b)

The following posts shall be deemed to be administrative posts ;

(i)

In-charge Ayush Medical Officer, Primary Health Centre.

(ii)

Dy. Superintendent, In-charge Officer, Referral Hospital/Sub-Divisional Hospital/Sadar Hospital, Hospitals relating to Medical Colleges of Ayush Sector/ Research Officer (Ayush).

(iii)

District chief Ayush Medical Officer/ Dy. Director (Ayurved, Unani & Homoeopathic) (Ayush Sector)/Ayush Superintendent/Manager, State Ayurvedic and Unani Drug Pharmacy, Patna & equivalent posts.

(iv)

Director (Ayush sector)/ Regional Director Ayush.

(v)

Director General/ Director in Chief Ayush.

Post mentioned in Sl. No. (i) & (ii) shall be filled on the basis of seniority from amongst working doctors in the concerned Hospital. The total No. of Posts mentioned in Sl. No. (iii) Shall be three times to the total No. of sanctioned posts of District Chief Ayush Medical Officer. District Chief Ayush Medical Officer will be selected from amongst the senior doctors of this level on the basis of seniority and efficiency in which 50% posts of Ayurved, 20% posts of Unani and 30% posts of Homoeopathic sector shall be filled out of sanction posts. The posts equivalent to Dy. Director shall also be notified by the Department. Out of total No. of posts mentioned in Sl.No-(iii) and (IV), separate number of the posts shall be decided by the Department for general duty Sub-Cadre and specialist Sub-Cadre. The selection to the posts mentioned in si. no-(v) shall be made from the posts mentioned in si. no. (iv)

10.

All Ayush Doctors appointed on the basis of seniority and working prior to the coming into force of these Rules, shall be automatically deem to be included in this service.

11.

Dynamic ACP.

(a)

Doctors of State Ayush Medical Service shall be granted first financial progression, alongwith progression of level of post on completion of six years of rural health service. Second and third financial progression, along with progression of post, shall be granted after equal intervals of 6 years after getting the first financial progression:

Provided that for the Ayush Doctors in service on the date of the coming into force of these Rules "Six years of rural health service" mentioned in the above paragraph shall be read as "service of Six years" and due to dynamic ACP pay shall be fixed on the basis of total length of service.

Note. - Rural health service means, service rendered in such Hospitals which are outside the area of Nagar Nigam/ Nagar Parishad/ Nagar Panchayat.

(b)

The facility of dynamic ACP shall be admissible maximum up to the pay scale of 14300-18300 (PB 37400- 67000+ grade Pay-8700)

12.

Probation period/training/ Departmental examination/ confirmation, the Department shall issue guidelines in this respect separately.

13.

Qualification required for Dynamic ACP/Promotion.

- (i) Service of Ayush Doctors shall be confirmed after satisfactory Service of probation period of two years provided that they have passed the prescribed Departmental Examination and obtained the necessary Treasury Training.

(ii)

The Dynamic ACP/ Promotion shall be considerable on the basis of the recommendation of Departmental Promotion Committee. Departmental Promotion Committee shall, after considering the following facts recommend for the Dynamic ACP/ Promotions. -

(a)

Satisfactory Character Roll

(b)

To obtain Clearance Report (at least from internal vigilance) shall be essential.

(c)

Other criteria fixed for this purpose from time to time by the State Government (General Administration department) namely, completion of kalawadhi for general promotion.

(iii)

Development Commissioner shall be the Chairman of the Departmental Promotion Committee. Other members shall be as per Rules.

(iv)

Reservation - separate reservation shall not be necessary for dynamic ACP as by said provisions only the level of the sanctioned posts itself is elevated but for regular promotion to the higher post it shall be essential to follow the reservation/Roster

14.

Posts on the Pay scale mentioned in schedule-I shall be treated as created & identified in those scales.

15.

Whichever amendments shall be in the Rules made for the purpose of determining the service condition of the State Medical Cadre shall be deemed to be applicable to the Ayush Sector Automatically.

16.

Repeal.

- All Concerned Departmental Notifications/ Resolutions shall be deemed to be repealed to this extent with effect from the date of coming into force of these Rules. Any action being taken in previous cases shall not be affected by these Rules.

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Category of Posts In State Ayush Medical cadre

(1)

General Duty Sub-Cadre. -

(i)

Medical Officer Ayush 8000 - 13,500 (PB 15,600 -39100+GP 5400)

(ii)

Senior Medical Officer Ayush -10,000-15,200 (PB 15600-39100+GP 3600) Research Officer State, Ayurvedic & Unani Research Unit Bihar, Patna/Dy. Superintendent of State Ayush Sector Medical College Hospitals/ Dy. Superintendent of 10 Bed Govt. Homoeopathic Hospital, Patna.

(iii)

Dy. Chief Medical Officer Ayush -12000 - 16500 (PB15600 -39100+GP7600)

(iv)

Chief Ayush Medical Officer -14300 -18300 (PB 37400 -67000 + GP 8700)

(2)

Specialist Sub-cadre. -

(i)

Specialist Grade II - 8000-13500(PB 15600-39100+GP5400)

(ii)

Specialist Grade I - 10000-15200(PB 15600-39100+GP6600)

(iii)

Senior Specialist - 12000-16500 (PB 15600-39100+GP 7600)

(iv)

Consultant -14300 - 18300 (PB 37400 -67000+ GP 8700)

(3)

Combined Administrative Post. -

(i)

District Chief Ayush Medical Officer/ Manager/ Superintendent/ Dy. Director (Ayurved, Unani & Homoeopathic) 14300-18300 (PB. 37400-67000+GP 8700)

(ii)

Director (Ayurved, Unani & Homoeopathic/ Regional Director Ayush) -16400-20000(PB.37400- 67000+GP.8900)

(iii)

Director General Ayush /Director in Chief Ayush-18400-22400 (PB.37400-6700+GP. 10000)

Note. - Doctors of District Ayush Medical Cadre shall get fixed pay as determined by the Government from time to time.

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